

ELIZABETH II



1979 CHAPTER x

An Act to empower the British Railways Board to construct works and to acquire lands in the district of Selby in the county of North Yorkshire; to confer further powers on the Board; and for other purposes.
[26th July 1979]

WHEREAS by the Transport Act 1962 the British Railways 1962 c. 46. Board (hereinafter referred to as "the Board") were established:

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

And whereas, by reason of the proposed development by the National Coal Board of the Selby coalfield, it is expedient that the Board should be empowered to construct in the district of Selby in the county of North Yorkshire the works authorised by this Act and to acquire the lands in the said district referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the Chief Executive and Clerk of the County Council of North Yorkshire, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the British Railways (Selby) Act 1979.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

1845 c. 20.	“ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;
1863 c. 92.	“ the Act of 1863 ” means the Railways Clauses Act 1863;
1963 c. xviii.	“ the Act of 1963 ” means the British Railways Act 1963;
1967 c. xxx.	“ the Act of 1967 ” means the British Railways Act 1967;
1968 c. xxxiv.	“ the Act of 1968 ” means the British Railways Act 1968;
1969 c. xliii.	“ the Act of 1969 ” means the British Railways Act 1969;
1971 c. xlv.	“ the Act of 1971 ” means the British Railways Act 1971;
1975 c. xxix.	“ the (No. 2) Act of 1975 ” means the British Railways (No. 2) Act 1975;

- “ the Act of 1976 ” means the British Railways Act 1976; PART I
—cont.
 “ the Board ” means the British Railways Board; 1976 c. xxv.
 “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
 “ telegraphic line ” has the same meaning as in the Telegraph Act 1878; 1878 c. 76.
 “ the tribunal ” means the Lands Tribunal;
 “ the works ” means the works authorised by Part II (Works) of this Act.

(2) All areas, directions, distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such area, direction, distance and length and distances between points on a railway shall be taken to be measured along the railway.

(3) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

(4) References in this Act to reference points shall be construed as references to ordnance survey National Grid reference points.

3. The following Act and Part of an Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

The Act of 1845, except sections 7, 8, 9, 19, 20, 22 and 23 thereof, and Part I (relating to the construction of a railway) of the Act of 1863:

Provided that—

- (i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “ the company ” where used in the said incorporated provisions means the Board;
- (ii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act 1950; 1950 c. 39.

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act; or

PART I
—cont.

(c) by the provisions of section 45 (For further protection of gas, water and electricity undertakers) of the Act of 1967, as incorporated with this Act;

1968 c. 73.

(iii) the provisions of section 46 of the Act of 1845, as incorporated with this Act, shall have effect subject to the provisions of sections 116 and 117 of the Transport Act 1968 as if any bridge to which the said section 46 applies and which carries a highway were in existence and maintainable by the Board immediately before the appointed day referred to in the said section 116.

Application of
Part I of
Compulsory
Purchase Act
1965.

1965 c. 56.

1946 c. 49.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the county of North Yorkshire—

In the district of Selby—

(Railways at
Selby.)

Work No. 1. A railway (22,370 metres in length) commencing in the parish of Hensall by a junction with the Doncaster and York railway at a point 435 metres south of the bridge carrying the said railway over the river Aire, passing through the

parishes of Temple Hirst, Chapel Haddlesey, Burn, Gateforth, Hambleton, Wistow, Cawood, Sherburn in Elmet, Biggin, Ryther cum Ozendyke, Bolton Percy and Appleton Roebuck and terminating in the parish of Colton by a junction with the York and Sheffield railway at a point 1,510 metres north-east of the bridge carrying Colton Lane over the last-mentioned railway and over the York and Leeds railway.

Work No. 2. A railway (1,962 metres in length), wholly in the parish of Hambleton, commencing by a junction with Work No. 1 at a point 110 metres north of the junction of Morretts Lane and the A.63 road and terminating by a junction with Work No. 4 at a point 102 metres east of the level crossing whereby the Leeds and Selby railway crosses Philip Lane.

Work No. 3. A railway (908 metres in length), wholly in the parish of Hambleton, commencing by a junction with Work No. 4 at a point 1,300 metres west of the commencement thereof hereinafter described, and terminating by a junction with Work No. 1 at a point 434 metres north of the level crossing whereby the Leeds and Selby railway crosses Scalm Lane.

Work No. 4. A railway (3,490 metres in length), being a deviation of the Leeds and Selby railway, commencing in the parish of Thorpe Willoughby by a junction with the said railway at a point 176 metres west of the level crossing whereby the said railway crosses Dam Lane, and terminating in the parish of Hambleton by a junction with the said railway at a point 319 metres west of the level crossing whereby the said railway crosses Philip Lane.

Work No. 5. A railway (894 metres in length), commencing in the parish of Colton by a junction with Work No. 1 at a point 876 metres north-east of the bridge carrying Colton Lane over the York and Sheffield and the York and Leeds railways, and terminating in the parish of Appleton Roebuck by a junction with the York and Sheffield railway, at a point 13 metres south-west of the said bridge.

Work No. 6. A railway (300 metres in length), in the parishes of Sherburn in Elmet and South Milford, commencing by a junction with the Sherburn in Elmet to Gascoigne Wood railway at a point

PART II
—cont.(Raising of
flood bank at
Ryther cum
Ozendyke.)

455 metres north-west of the junction of the said railway with the Leeds and Selby railway and terminating by a junction with the Leeds and Selby railway at a point 1,045 metres west of the level crossing whereby that railway crosses Hagg Lane.

Work No. 7. A raising of the flood bank adjoining the river Wharfe in the parish of Ryther cum Ozendyke commencing at reference point SE 5390:3974 and terminating at reference point SE 5473:3950.

Further works
and powers.

6. Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations and according to the levels as shown) the Board may make and maintain the further works, with all necessary works and conveniences connected therewith, and exercise the powers, described in column (2) of Schedule 1 to this Act in respect of the roads, bridleways and footpaths or parts thereof specified therein by reference to the letters shown on the deposited plans in relation to the areas specified in column (1) of the said schedule.

As to bridges
over rivers
Aire and
Wharfe.

7. Notwithstanding anything shown on the deposited plans and sections the Board shall so construct and maintain—

(a) the bridge to carry Work No. 1 over the river Aire as to provide a soffit level of not less than 9.1 metres above ordnance datum level;

(b) the bridge to carry Work No. 1 over the river Wharfe as to provide a soffit level of not less than 8.4 metres above ordnance datum level;

and the spans of the said bridges shall be not less than those shown on the deposited sections.

As to vertical
limits of
deviation in
respect of
Work No. 7.

8. Notwithstanding anything in section 17 (Power to deviate) of this Act, the Board shall not in the construction of Work No. 7 deviate vertically from the levels thereof shown on the deposited sections to any extent upwards or to any greater extent downwards than 10 centimetres.

As to
height of
bridge.

9. Notwithstanding anything in the Act of 1845, as incorporated with this Act, the Board may construct the bridge for carrying Work No. 1 over the C.329 road with a clear height of not less than 4 metres from the surface of the road.

Accommoda-
tion works
for Work
No. 4.

10.—(1) (a) The Board shall make and maintain for the use of the owners and occupiers of the lands adjoining Work No. 4—

(i) a private access road along the north side of Work No. 4 extending westwards from Work No. 1 to a point in the vicinity of Philip Lane;

- (ii) a private access road along the north side of Work No. 4 extending eastwards from Work No. 3 to Dam Lane;
- (iii) a level crossing in the vicinity of the point at which Philip Lane will be crossed by Work No. 4.

(b) Such access roads and level crossing shall be provided for the accommodation of the said owners and occupiers and in accordance with their reasonable requirements and shall be the only accommodation roads and crossing required to be provided by the Board pursuant to section 68 of the Act of 1845, as incorporated with this Act, for the purpose of making good any interruption caused by Work No. 4 to the use of the lands through which Work No. 4 shall be made.

(2) (a) As from the completion and bringing into use of the access roads and level crossing referred to in subsection (1) of this section and notwithstanding anything in section CXXXII (Company to erect Gates &c. for Protection of adjoining Lands) of the Leeds and Selby Railway Act 1830, the rights of way to 1830 c. lix. which this subsection applies shall be extinguished.

(b) This subsection applies to any accommodation crossing or other private right of way provided pursuant to the said section CXXXII over that part of the Leeds and Selby railway which exists at the passing of this Act and lies between the commencement and termination of Work No. 4.

11. On the opening for passenger and goods services of Works Nos. 1 to 5, the provisions of section 54 of the Transport Act 1962 (which requires advance notice of discontinuance of certain services to be published) and the provisions of section 56 of that Act (which relates to the establishment and functions of transport consultative committees) shall not apply in respect of the discontinuance of any existing railway passenger or goods services on so much of the Doncaster and York railway as lies between Barlby North junction and Challoners Whin junction. Transport consultative committees.
1962 c. 46.

12.—(1) Where this Act authorises the stopping up of a road, bridleway or footpath or portion thereof without providing a substitute such stopping up shall not take place (except as to so much of the road, bridleway or footpath or portion thereof authorised to be stopped up as is bounded on both sides by lands of the Board) without the consent of the owners, lessees and occupiers of the houses and lands abutting on both sides thereof. Stopping up roads, bridleways and footpaths without providing substitute.

(2) After such stopping up all rights of way over or along the road, bridleway or footpath or portion thereof authorised to be stopped up shall be extinguished.

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—cont.

(3) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute by the tribunal.

Stopping up
roads,
bridleways
and footpaths
in case of
diversion or
substitution.

13.—(1) Where this Act authorises—

- (a) the diversion of an existing road, bridleway or footpath;
or
- (b) the making of a new road, bridleway or footpath and the stopping up of an existing road, bridleway or footpath or portion thereof;

the stopping up of the existing road, bridleway or footpath shall not in any case take place until the highway authority are satisfied that the new road, bridleway or footpath has been completed in accordance with their reasonable requirements and is open for public use or, in case of any difference between the Board and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, until the matter in dispute has been referred to and determined by arbitration.

(2) Before referring a matter to arbitration under this section, the Board shall give to the highway authority seven days' notice in writing of their intention to do so.

(3) As from the completion to the satisfaction of the highway authority of the new road, bridleway or footpath, or as from the date of the determination by arbitration of any difference under subsection (1) of this section (as the case may be), all rights of way over or along the existing road, bridleway or footpath or portion thereof authorised to be diverted or stopped up shall be extinguished.

(4) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute by the tribunal.

Appropriating
and breaking
up sites of
roads,
bridleways
and footpaths.

14. After a road, bridleway or footpath or portion thereof is diverted or stopped up pursuant to either section 12 (Stopping up roads, bridleways and footpaths without providing substitute) or section 13 (Stopping up roads, bridleways and footpaths in case of diversion or substitution) of this Act the Board—

- (a) may, subject to the provisions of the Act of 1845 with respect to mines lying under or near the railway—

- (i) as far as the said road, bridleway or footpath or portion thereof is bounded on both sides by lands of the Board, appropriate without making any payment therefor and use for the purposes of their undertaking the site of the same; or

(ii) as far as such road, bridleway or footpath or portion thereof is not so bounded, enter upon, break up and remove the surface of the said road, bridleway or footpath or portion thereof, provided that the consent of the owners and lessees of the houses and lands abutting on both sides thereof is given to such entry, breaking up and removal, and may restore the site of the said road, bridleway or footpath or portion thereof as near as may be to its natural state to the reasonable satisfaction of the said owners and lessees; and

(b) shall exercise the powers conferred by sub-paragraph (ii) of paragraph (a) of this section in relation to any length of road, bridleway or footpath if requested to do so by all the owners and lessees of the houses and lands abutting on both sides thereof.

15.—(1) The Board during and for the purpose of the execution of the works may temporarily stop up and divert and interfere with any road, bridleway or footpath and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road, bridleway or footpath from passing along and using the same. Temporary stoppage of roads, bridleways and footpaths.

(2) The Board shall provide reasonable access for persons on foot bona fide going to or from any such land, house or building.

(3) The Board shall not exercise the powers of this section without the consent of the highway authority (which consent may be given subject to such conditions as the highway authority consider necessary in the interest of the safety of users of the road, bridleway or footpath), but such consent shall not be unreasonably withheld and any question as to whether such consent has been unreasonably withheld shall be referred to and settled by arbitration.

(4) Any application for consent under subsection (3) of this section shall be made in writing to the highway authority not less than 28 days (or, in case of emergency, as soon as reasonably practicable in all the circumstances) before the day on which the Board propose to commence to exercise the powers of this section in relation to any road, bridleway or footpath.

(5) The Board shall not exercise the powers of this section with respect to any road upon which public service vehicles are authorised by a road service licence to operate unless the Board give not less than forty-eight hours' previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed.

PART II
—cont.

(6) The exercise by the Board of the powers of this section in relation to any road, bridleway or footpath shall not prejudice or affect the right of the Post Office under the Telegraph Acts 1863 to 1916 to place, maintain, inspect, repair, renew or remove telegraphic lines or break open that road, bridleway or footpath for any of those purposes.

Use of
watercourses,
sewers, etc.,
for removing
water.

16.—(1) The Board may use for the discharge of any water pumped or found by them during the construction of the works any available stream or watercourse, or any watercourse, sewer or drain of the water authority, or a local authority, or of an internal drainage board in or through whose area or district (as the case may be) the works may be constructed or pass, and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer or drain within the limits of deviation:

Provided that—

- (a) the Board shall not discharge any water into any watercourse, sewer or drain vested in or under the control or supervision of the water authority, local authority or internal drainage board except with the consent of the water authority, local authority or internal drainage board and subject to such terms and conditions as the water authority, local authority or internal drainage board may reasonably impose; and
- (b) the Board shall not make any opening into any such watercourse, sewer or drain save in accordance with plans reasonably approved by, and under the superintendence (if given) of, the water authority, local authority or internal drainage board in whom the watercourse, sewer or drain shall be vested or under whose control or supervision the same shall be.

1951 c. 64.

(2) (a) Notwithstanding anything in section 11 (7) of the Rivers (Prevention of Pollution) Act 1951, the discharge of any water under the powers of this section into any stream as defined in that section shall be subject to the provisions of section 2 of that Act.

1974 c. 40.

(b) On the coming into force of section 31 of the Control of Pollution Act 1974 paragraph (a) of this subsection shall cease to have effect and the said section 31 shall apply to, or to the consequence of, a discharge under the powers of this section into any relevant waters for the purposes of the said section 31 as if this section were excluded from the reference to any provision of a local Act mentioned in subsection (2) (b) (ii) of the said section 31 and as if no matter so discharged were trade or sewage effluent or other matter mentioned in subsection (2) (e) of the said section 31.

(c) In the exercise of their powers under this section the Board shall not damage or interfere with the bed of any watercourse forming part of the main river of the water authority or the banks thereof within the meaning of section 116 of the Land Drainage Act 1976.

PART II
—cont.

1976 c. 70.

(3) The Board shall take all such steps as may reasonably be required to secure that any water discharged by them under the powers of this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(4) Any difference arising between the Board and the water authority, a local authority or an internal drainage board (as the case may be) under this section shall be settled by arbitration.

(5) In this section—

“internal drainage board” means the Appleton Roebuck and Copmanthorpe Internal Drainage Board, the Knottingley and Gowdall Internal Drainage Board, the North Wharfe Internal Drainage Board, the Selby Area Internal Drainage Board or the South Wharfe Internal Drainage Board;

“local authority” means the North Yorkshire County Council or the Selby District Council;

“the water authority” means the Yorkshire Water Authority.

17. Subject to the provisions of this Act, in the execution of any, or any part, of the works the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres upwards and 3 metres downwards or to such further extent as may be found necessary or convenient and as may be sanctioned by the Minister of Transport.

Power to
deviate.

18. Subject to the provisions of this Act, the following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of provisions
of Acts of
1963 and
1968 relating
to works.

The Act of 1963—

Section 13 (Provision as to repair of roads and footpaths); and

Section 14 (Power to make agreements with road authorities):

The Act of 1968—

Section 11 (Underpinning of houses near works):

PART II
—*cont.*

Provided that the Board shall, so far as is reasonably practicable, so exercise the powers conferred by the said section 11 of the Act of 1968 as not to obstruct or render less convenient the access to any telegraphic line belonging to, or used by, the Post Office.

PART III
LANDS

**Power to
acquire lands.**

19.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works (except Work No. 7) or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section the Board may, subject to the provisions of this Act, enter upon, take and use for the purposes specified in column (3) of Schedule 2 to this Act all or any of the lands referred to in columns (1) and (2) of the said schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

**Compulsory
acquisition of
rights over
lands.**
1965 c. 56.

20.—(1) In this section—

“ the Act ” means the Compulsory Purchase Act 1965;

“ new rights ” in relation to any land means easements or other rights over such land which are not in existence at the passing of this Act.

(2) The Board may, for the purpose of constructing, maintaining, altering, renewing and using the works, purchase compulsorily such new rights as they may require over any of the lands which may be acquired under section 19 (Power to acquire lands) of this Act instead of acquiring those lands under that section.

(3) The Act, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of new rights under subsection (2) of this section as it applies to the compulsory purchase of land so that, in appropriate

contexts, references in the Act to land are read as referring, or as including references, to the new rights or to land over which the new rights are, or are to be, exercisable, according to the requirements of the particular context.

PART III
—cont.

(4) Without prejudice to the generality of subsection (3) of this section, in relation to the purchase of new rights in pursuance of subsection (2) of this section—

- (a) Part I of the Act shall have effect with the modifications specified in Schedule 2 to the Act of 1976 and as if for the references in that schedule to the Act of 1976 there were substituted references to this Act;
- (b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

21.—(1) The Board may enter upon and take possession temporarily—

Temporary possession of lands for Work No. 7.

- (a) for the purpose of constructing and maintaining Work No. 7, of any of the lands within the limits of deviation of Work No. 7; and
- (b) for the purpose of obtaining access to such lands, of any of the lands numbered on the deposited plans 39a, 51a, 52 and 54a in the parish of Ryther cum Ozendyke in the district of Selby;

after giving to the owner, lessee and occupier thereof (except in case of emergency) not less than twenty-eight days' previous notice in writing specifying the part of the lands of which possession is so required and may construct thereon such temporary works and structures as may be required for the said purposes without being obliged or compellable to acquire any interest in such land in respect of such temporary possession:

Provided that—

- (i) the Board shall not, without the agreement of the owner, lessee and occupier thereof, remain in possession of any such land under the powers of this section after a period of one year from the completion of Work No. 7;
- (ii) the Board shall compensate the owner, lessee and occupier of any such land for any loss or damage which may result to them by reason of the exercise of the powers of this section in relation to such land; and
- (iii) nothing in this section shall relieve the Board from liability to compensate under section 6 or section 43 of the Act of 1845 or section 10 (2) of the Compulsory Purchase Act 1965, as incorporated or applied by this 1965 c. 56. Act, or under any other enactment, in respect of loss

PART III
—*cont.*

or damage arising from the execution of any works, other than loss or damage for which compensation is payable under proviso (ii) to this subsection.

(2) The Board may provide means of access to the lands referred to in paragraph (b) of subsection (1) of this section from the B.1223 road or any diversion thereof authorised by this Act.

(3) Before giving up possession of any land upon which entry is obtained under this section, the Board shall remove all temporary works and structures erected by them thereon and shall reinstate the land to the reasonable satisfaction of the owner, lessee and occupier thereof.

(4) Every case of compensation to be ascertained under this section shall be ascertained under the provisions of the Land Compensation Act 1961.

1961 c. 33.

Period for compulsory purchase of lands and rights over lands.

Incorporation of provisions of Acts of 1963, 1967 and 1969 relating to lands.

22. The powers of the Board for the compulsory purchase of the lands and rights over lands which they are authorised by this Act to acquire shall cease on 31st December, 1983.

23. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 19 (Correction of errors in deposited plans and book of reference); and

Section 28 (As to cellars under streets not referenced):

The Act of 1967—

Section 15 (Acquisition of part only of certain properties):

The Act of 1969—

Section 12 (Disregard of recent improvements and interests); and

Section 13 (Extinction of private rights of way).

PART IV

PROTECTIVE PROVISIONS

Incorporation of protective provisions of Acts of 1963, 1967, 1971 and (No. 2) 1975.

24. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 33 (For protection of gas, water and electricity undertakers):

The Act of 1967—

Section 45 (For further protection of certain gas, water and electricity undertakers):

The Act of 1971—

Section 26 (Crown rights):

The (No. 2) Act of 1975—

Section 23 (For protection of Post Office):

Provided that—

- (i) the definition of “undertakers” in paragraph (1) of the said section 33 of the Act of 1963 and in paragraph (1) of the said section 45 of the Act of 1967, as so incorporated, shall be construed as including a water authority not only in their capacity as an authority authorised by an enactment to carry on an undertaking for the supply of water within their area but also in their capacity as the authority having the duty, within their area, imposed by sections 10 and 14 of the Water Act 1973 and paragraph (b) of the definition of “apparatus” in the said sections 33 and 45 shall be construed accordingly; 1973 c. 37.
- (ii) in the said section 45 of the Act of 1967, as so incorporated—
 - (a) the reference in paragraph (2) thereof to section 11 (Underpinning of houses near works) of the Act of 1967 shall be construed as a reference to section 11 (Underpinning of houses near works) of the Act of 1968 as incorporated with this Act; and
 - (b) for the reference in paragraph (4) thereof to section 17 (Use of sewers, etc., for removing water) of the Act of 1963 as incorporated by section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 16 (Use of watercourses, sewers, etc., for removing water) of this Act;
- (iii) in the said section 23 of the (No. 2) Act of 1975 as so incorporated, the reference to section 7 (Further works and powers) shall be construed as a reference to section 6 (Further works and powers) of this Act in its application to the stopping up of roads, bridleways and footpaths or parts thereof and references to a road shall include references to a bridleway and a footpath.

PART IV
—cont.
For protection
of Minister of
Transport.

25. For the protection of the Minister of Transport (in this section referred to as “the Minister”) the following provisions shall, unless otherwise agreed in writing between the Board and the Minister, apply and have effect:—

(1) In this section—

“the authorised works” means the new bridge, the new road and so much of Work No. 1 as may in any way affect the A.63 road and includes any work in connection therewith;

“the new bridge” means the bridge for carrying the new road over Work No. 1;

“the new road” means the new road to be provided by the Board in the parish of Hambleton in the district of Selby between the points marked “C” and “D” on the deposited plans in substitution for that part of the A.63 road between the said points proposed to be stopped up and discontinued;

and references to the width of the new bridge or of the new road shall be construed as references to the width thereof between the parapets or fences (as the case may be) measured on the square:

(2) Notwithstanding anything in this Act the Board shall construct—

(a) the new bridge with a width of 12·30 metres comprising a carriageway 7·30 metres in width and verges of 2·50 metres in width on each side of the carriageway;

(b) the new road on either side of the new bridge with a width of 14·30 metres comprising a carriageway 7·30 metres in width and verges of 3·50 metres in width on each side of the carriageway:

(3) Before inviting tenders for the construction of the new road or the new bridge, the Board shall submit to the Minister for his reasonable approval the names of the contractors who are to be invited to submit tenders and the Board shall not invite tenders from any contractors who are not approved by the Minister:

Provided that, if within two months after submission to him of the names of contractors in accordance with the provisions of this paragraph the Minister does not signify his approval or disapproval of any of them and the grounds for such disapproval, he shall be deemed to have approved of them:

PART IV
—cont.

- (4) Before commencing the construction of any of the authorised works, the Board shall submit to the Minister for his reasonable approval plans, sections and particulars relating thereto and, notwithstanding anything shown on the deposited plans and the deposited sections, the work to which such plans, sections and particulars relate shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the Minister as aforesaid, or, if such approval be refused, as may be settled by arbitration, and any part of the construction of the authorised works which may involve interference with the A.63 road shall be carried out under the supervision (if given) and to the reasonable satisfaction of the Minister:

Provided that, if within two months after the submission to him of plans, sections and particulars in accordance with the provisions of this paragraph the Minister does not signify his approval or disapproval thereof and the grounds for such disapproval, he shall be deemed to have approved thereof:

- (5) Notwithstanding anything in this Act or shown on the deposited plans, the new bridge shall be designed and constructed so as to provide for a maximum loading to be agreed in advance by the Minister, and the Board shall indemnify the Minister against and make good to the Minister all expenses which the Minister may reasonably incur or be put to in the maintenance or repair of the A.63 road and any drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:
- (6) In the construction of any part of Work No. 1 over or under the A.63 road no part thereof shall (except with the consent of the Minister) be so constructed as to interfere with the provision of proper means of drainage of the surface of the said road:
- (7) The Board shall, at all reasonable times during the construction of any part of the authorised works, afford to the Minister or his duly authorised representatives access to that part of the authorised works for the purposes of inspection:
- (8) (a) The new road and the new bridge, together with all works and conveniences connected therewith, shall be vested in and maintained by the Minister as part of the A.63 road and he shall have all such rights in relation to the subsoil and under-surface of the new road and the new bridge as are necessary for the performance of his functions as the highway authority for such road:

PART IV
—cont.

Provided that the Board shall be liable to the Minister for the maintenance of the new road and the new bridge for a period of twelve months after the date of completion;

- (b) In this paragraph "the date of completion" means the date upon which the new road or, as the case may be, the new bridge is completed in accordance with the requirements of this section and open for public use, or, in case of a difference between the Board and the Minister as to whether the said requirements have been complied with, until the matter in dispute has been referred to and determined by arbitration and the arbitrator has certified that the new road or, as the case may be, the new bridge has been completed in accordance with his determination:
- (9) The Board shall pay to the Minister a capitalised sum representing the cost of maintaining the works specified in sub-paragraph (a) of paragraph (8) of this section:
- (10) The Board shall make compensation to the Minister for any subsidence of, or damage to, the A.63 road or any property of the Minister, or under his control or repairable by him, which may be caused by, or in consequence of, any act or default of the Board, their contractors, servants or agents and whether such subsidence or damage shall happen during the construction of the authorised works or at any time thereafter:
- (11) The Board shall keep the Minister indemnified against all actions, costs, claims and demands whatsoever brought or made against the Minister by any person in respect of loss or damage caused by, or in consequence of, the construction of any of the authorised works and the fact that any act or thing may have been done in accordance with plans, sections and particulars approved by the Minister or in accordance with any requirement of the Minister or under his supervision shall not (if it was done without negligence on the part of the Minister) excuse the Board from liability under the provisions of this section:

Provided that the Minister shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (12) Where plans, sections and particulars relating to any of the authorised works have been submitted to the Minister under this section, the Board shall pay to the

Minister, as reimbursement for the costs, charges and expenses incurred by the Minister in the examination of such plans, sections and particulars, a sum amounting to one-half of one per centum of the cost of the work to which such plans, sections and particulars relate:

PART IV
—cont.

- (13) Any difference arising between the Board and the Minister under this section (other than a difference as to the construction thereof) shall be settled by arbitration.

26. For the protection of the Post Office the following provisions shall, unless otherwise agreed in writing between the Board and the Post Office, apply and have effect in relation to the bridges:—

For protection
of Post Office.

- (1) In this section “the bridges” means the bridges to carry the new roads and bridleway mentioned in column (1) of Schedule 3 to this Act over Work No. 1 and forming part of the works:
- (2) The Board shall in the construction of the bridges provide therein for the telegraphic lines of the Post Office accommodation consisting of a steel pipe or pipes, having an external diameter of such size as the Post Office may approve but not less than 105 millimetres and not more than 130 millimetres, as specified in column (2) of Schedule 3 to this Act:
- (3) The said accommodation shall be provided in accordance with plans, sections and particulars to be previously submitted to and reasonably approved by the Post Office:

Provided that, if within one month of the receipt of the said plans, sections and particulars the Post Office has not intimated its disapproval thereof or made any requirement with respect thereto, it shall be deemed to have approved the same:

- (4) The Board shall, before they complete the construction of the bridges, lay down the said steel pipes to the reasonable satisfaction of the Post Office:
- (5) The costs of providing the said accommodation and in laying down the said steel pipes in the bridges referred to in Part I of Schedule 3 to this Act shall be borne by the Board.
- (6) The additional costs (if any) reasonably incurred by the Board in providing the said accommodation and in laying down the said steel pipes in the bridge referred to in Part II of Schedule 3 to this Act, shall be repaid to the Board by the Post Office in a single payment or in such other manner as may be agreed between the Board and the Post Office:

PART IV
—cont.

- (7) Any questions which may arise between the Post Office and the Board under this section shall be determined by arbitration.

For protection
of British
Waterways
Board.

27. For the protection of the British Waterways Board (in this section referred to as “the waterways board”) the following provisions shall, unless otherwise agreed in writing between the Board and the waterways board, apply and have effect:—

- (1) In this section—

“the canal” means the Selby Canal owned or managed by the waterways board, and any works connected therewith for the maintenance of which the waterways board are responsible and includes any lands held or used by the waterways board for the purposes of the canal;

“construction” includes reconstruction and for the purposes of paragraphs (10) and (11) of this section includes the maintenance and repair of the works;

“the engineer” means an engineer to be appointed by the waterways board;

“plans” includes sections, drawings and particulars, including method of construction;

“the works” means so much of Work No. 1 as may be situated upon, across, under or over or may in any way affect the canal:

- (2) The Board shall not under the powers of this Act acquire compulsorily any land of the waterways board, except so much of the land delineated on the deposited plans and described in the deposited book of reference and therein numbered 1, 2, and 2a in the parish of Gateforth in the district of Selby as they may require for the construction and maintenance of the embankments of Work No. 1 on both sides of the canal and the abutments and the piers of the bridge to carry Work No. 1 over the canal but they may in accordance with the provisions of section 20 (Compulsory acquisition of rights over lands) of this Act acquire such easements or other rights in, under or over any land of the waterways board as they may reasonably require for the purposes of the works:
- (3) Notwithstanding anything shown on the deposited plans and sections the Board shall so construct and maintain the bridge to carry Work No. 1 over the canal as to provide a soffit level of not less than 8.51 metres above ordnance datum level:

- (4) The Board shall, before commencing the construction of the works, including temporary works, furnish to the waterways board proper and sufficient plans thereof for the reasonable approval of the engineer, and shall not commence the works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that, if within twenty-eight days after such plans have been furnished to the waterways board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval, he shall be deemed to have approved the same:

- (5) Upon signifying his approval or disapproval of the plans the engineer may specify any protective works, whether temporary or permanent, which in his opinion should be carried out before the commencement of the works to ensure the safety or stability of the canal and such protective works as may be reasonably necessary for those purposes shall be constructed by the Board with all reasonable dispatch:
- (6) The Board shall give to the engineer twenty-eight days' notice of their intention to commence the construction of any of the works and also (except in emergency when they shall give such notice as may be reasonably practicable) of their intention to carry out any works for the repair or maintenance of the works in so far as such works of repair or maintenance affect or interfere with the canal:
- (7) The Board shall provide and maintain at their cost any temporary lighting of the canal and signal lights in the vicinity of the works, being lighting which the engineer may reasonably require during the construction or failure of the works:
- (8) The works shall when commenced be carried out with all reasonable dispatch in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the engineer, and in such manner as to cause as little damage to the canal as may be and as little interference as may be with the passage of vessels using the canal. If any damage to the canal or any stoppage thereof or any interference with the passage of vessels using the canal shall be caused by the carrying out of the works, the Board shall, notwithstanding any such approval as aforesaid, make good such damage and on demand pay to the waterways board all reasonable expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, stoppage or interference:

PART IV
—cont.

Provided that nothing in this paragraph shall impose any liability on the Board with respect to any damage, expenses or loss which is attributable to the act, neglect or default of the waterways board or their servants, contractors or agents:

- (9) The Board shall at all times afford reasonable facilities to the engineer for access to the works during their construction and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (10) The Board shall repay to the waterways board all costs, charges and expenses reasonably incurred by the waterways board—

(a) in respect of the employment of any inspectors, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching and lighting the canal and for preventing, as far as may be reasonably practicable, interference, obstruction, danger or accident arising from the construction or failure of the works;

(b) in respect of the supervision by the engineer of the works;

(c) in bringing the works to the notice of users of the canal:

- (11) The Board shall be responsible for and make good to the waterways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the waterways board—

(a) by reason of the works or the failure thereof;
or

(b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the works;

and the Board shall effectively indemnify and hold harmless the waterways board from and against all claims and demands arising out of or in connection with the construction of the works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done in accordance with plans approved by the engineer, or in accordance with any requirement of the engineer or under his supervision, shall not (if it was done without negligence on the part of the waterways board) excuse the Board from any liability under the provisions of this section:

Provided that the waterways board shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

PART IV
—cont.

- (12) Any difference arising between the Board and the waterways board under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

28. For the protection of the North Yorkshire County Council (in this section referred to as "the council") the following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect:—

For protection
of North
Yorkshire
County
Council.

- (1) In this section—

"specified works" means the new bridges, the new highways, and so much of the works as may in any way affect any highway;

"highway" means any highway vested in or repairable or maintainable by the council;

"the new bridge" means any bridge to be constructed under the provisions of this Act for carrying any highway and the expression "the new bridges" shall be construed accordingly;

"the new highway" means any new highway to be provided by the Board under the provisions of this Act and the expression "the new highways" shall be construed accordingly:

- (2) (a) In carrying out any of the further works authorised, or exercising any of the powers conferred on the Board, by section 6 (Further works and powers) of this Act, the Board shall comply with the requirements specified in column (3) of Schedule 1 to this Act in respect of such work or power described in column (2) of that schedule:
- (b) In column (3) of the said schedule any reference to width shall be construed as a reference to the width measured at right angles to the centre line of the road, bridleway or footpath, as the case may be, and any part of a bridleway or footpath which is to be carried by a bridge shall be so measured;
- (3) Before commencing the construction of any of the specified works, the Board shall submit to the council for their reasonable approval plans, sections and particulars relating thereto and, notwithstanding anything shown on the deposited plans and the deposited sections, the work to which such plans, sections and

PART IV
—cont.

particulars relate shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the council as aforesaid, or, if such approval be refused, as may be settled by arbitration, and any part of the construction of the specified works which may involve interference with a highway shall be carried out under the supervision (if given) and to the reasonable satisfaction of the council:

Provided that, if within 28 days after the submission to them of plans, sections and particulars in accordance with the provisions of this paragraph the council do not signify their approval or disapproval thereof and the grounds for such disapproval, they shall be deemed to have approved thereof:

- (4) Notwithstanding anything in this Act or shown on the deposited plans the new bridges shall be designed, constructed and maintained so as to provide for loadings to be agreed in advance by the council and the Board shall indemnify the council against and make good to the council all expenses which the council may reasonably incur or be put to in the maintenance or repair of any highway, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:
- (5) (a) Before commencing to construct any part of the specified works which will involve interference with a highway the Board shall consult the council as to the time when such part shall be commenced, as to the extent of the surface of the highway which it may be reasonably necessary for the Board to occupy in the construction of such part and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with such reasonable conditions as may be agreed between the Board and the council or, in default of agreement, settled by arbitration:
 - (b) Any such highway shall be reinstated by the Board in a manner reasonably approved by the council and to their reasonable satisfaction:
- (6) In the construction of any part of the specified works over or under any highway no part thereof shall (except with the consent of the council) be so constructed as to interfere with the provision of proper means of drainage of the surface of any highway:

- (7) The Board shall, at all reasonable times during the construction of any part of the specified works, afford to the surveyor of the council or his duly authorised representatives access to that part of the specified works for the purposes of inspection:
- (8) The structures of the new bridges, the embankments on which the approaches to the new bridges are constructed and any fencing on either side of those approaches shall be maintained by the Board:
- (9) (a) The new highways, the surface of the carriageways of the new bridges and the footways thereof and the surface of any footpaths which may thereafter be constructed by the council upon such footways shall be vested in and maintained by the council who shall have all such rights in relation to the subsoil and under-surface thereof as are necessary for the performance of their functions as highway authority:
- Provided that the Board shall be liable to the council for the maintenance of any new highway, the surface of the carriageways of any new bridges and the footways thereof for a period of 12 months after the date of completion:
- (b) In this paragraph "the date of completion" means the date upon which the new highway or, as the case may be, the new highway and the new bridge carrying it, is completed in accordance with the requirements of this section and open for public use or, in the case of a difference between the Board and the council as to whether the said requirements have been complied with, until the matter in dispute has been referred to and determined by arbitration and the arbitrator has certified that the new highway or, as the case may be, the new bridge has been completed in accordance with his determination:
- (10) The Board shall make compensation to the council for any subsidence of, or damage to, any highway or any property of the council, or under their control or repairable by them, which may be caused by, or in consequence of, any act or default of the Board, their contractors, servants or agents and whether such subsidence or damage shall happen during the construction of the specified works or at any time thereafter:
- (11) The Board shall keep the council indemnified against all actions, costs, claims and demands whatsoever brought or made against the council by any person in respect of loss or damage caused by, or in consequence

PART IV
—cont.

of, the construction of any of the specified works and the fact that any act or thing may have been done in accordance with plans, sections and particulars approved by the council or in accordance with any requirement of the council or under their supervision shall not (if it was done without negligence on the part of the council) excuse the Board from liability under the provisions of this section:

Provided that the council shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (12) The Board shall repay to the council in respect of all costs, charges and expenses reasonably incurred by the council for the examination of the plans, sections and particulars submitted to the council under this section in relation to any of the specified works a fee of—

(a) one-half of one per centum on the cost of the new bridges; and

(b) one per centum on the cost of the new highways, excluding the cost of earthworks:

- (13) Any difference arising between the Board and the council under this section (other than a difference as to the construction thereof) shall be settled by arbitration.

For protection
of drainage
authorities.

29. For the protection of each of the drainage authorities the following provisions shall, unless otherwise agreed in writing between the Board and the relevant drainage authority, apply and have effect:—

- (1) In this section, unless the context otherwise requires, words which are defined or explained in the Land Drainage Act 1976 shall have the same meaning or explanation, and—

“drainage authority” means any internal drainage board in whose district a specified work is to be constructed and, where a specified work is to be constructed in a place which is not within the district of any internal drainage board or where the same will or may affect (whether directly or indirectly) a main river, the Yorkshire Water Authority;

“land drainage system” includes all watercourses, banks (including flood banks), facilities and other things used, or reasonably deemed by the drainage authority to be necessary, for the drainage of land and in respect of which the drainage authority have duties, or are entitled to exercise powers, under the said Land Drainage Act;

“ plans ” means detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, any specified work is proposed to be constructed and so far as reasonably practicable shall accurately describe any part of the land drainage system within the limits of deviation (for which purpose the drainage authority shall allow the Board access to their records to assist the Board in obtaining reliable information) and shall comprise detailed drawings of every alteration which the Board may propose to make to any part of the land drainage system;

“ specified work ” means any work (whether temporary or permanent) which the Board are by this Act empowered to construct and which will or may affect (whether directly or indirectly) any of the aspects referred to in sub-paragraph (a) of paragraph (2) of this section, of the land drainage system.

- (2) (a) For the purpose of ensuring that, at no expense to the drainage authority, the function, maintenance, protection and potential for improvement of, and (so far as not inconsistent with the safe and efficient operation of any railway of the Board) facilities for access to, the land drainage system will not be prejudiced by reason or in consequence of the construction or intended construction of any specified work, the following provisions of this paragraph shall apply notwithstanding the protection afforded to the Board by section 112 (3) of the said Land Drainage Act;
- (b) Not less than two months before commencing a specified work the Board shall give notice in writing to the drainage authority of their intention to commence the same, specifying such other powers as the Board are by this Act authorised to exercise and are proposing to exercise in relation to the specified work and as will or are reasonably likely to affect any of the aspects of the land drainage system referred to in sub-paragraph (a) of this paragraph and such notice shall be accompanied by plans of the specified work;
- (c) Unless within two months of the receipt of such notice the drainage authority have informed the Board in writing of their disapproval and have indicated in writing the grounds of such disapproval, the notice and the plans accompanying such notice shall be deemed to have been approved;
- (d) In indicating the grounds of their disapproval under sub-paragraph (c) of this paragraph the drainage authority

PART IV
—cont.

- shall specify such modifications as they reasonably require to be made to the manner in which the said other powers are proposed to be exercised or to the said plans;
- (e) The Board shall construct a specified work and exercise those other powers only in accordance with the notice and plans approved or deemed to be approved by the drainage authority as aforesaid or settled by arbitration;
- (f) If the drainage authority reasonably so require, any specified work which is not less than 20 metres from the centre line of Works Nos. 1 to 6 as constructed may be constructed by the drainage authority at the cost and expense in all respects of the Board;
- (g) If in consequence of the construction of a specified work alterations to the land drainage system outside the limits of deviation are reasonably required by the drainage authority, such alterations shall be effected by the drainage authority at the cost and expense in all respects of the Board;
- (h) The Board shall observe and perform all reasonable orders, directions, regulations, terms and conditions of the drainage authority with respect to—
- (i) the construction of any specified work;
 - (ii) the exercise of any powers specified in a notice given under sub-paragraph (b) of this paragraph;
 - (iii) the maintenance of any watercourse which is on land of the Board and would but for the exercise of the powers of this Act form part of the land drainage system;
- (i) The Board shall grant to the drainage authority so far as reasonably practicable such rights of access to the land drainage system upon such terms and conditions as the drainage authority may reasonably require and in determining whether a requirement is reasonable regard shall be had to the interests of the owner, lessee and occupier of the land concerned;
- (j) Any specified work which is to be constructed by the Board shall be so constructed to the reasonable satisfaction of the drainage authority;
- (k) It shall be lawful for an officer of the drainage authority duly appointed for the purpose at any reasonable time to enter upon and inspect any specified work;
- (l) As soon as reasonably practicable after the completion by the Board of the construction of a specified work the Board shall deliver to the drainage authority a plan and section showing the position and level of that work as constructed.

(3) The Board shall—

PART IV
—cont.

(a) indemnify a drainage authority against all reasonable costs, charges and expenses of, or incurred by, such drainage authority in, or incidental to, the discharge of their functions under paragraph (2) of this section;

(b) pay to a drainage authority the amount of all reasonable expenditure of, or incurred by, such drainage authority from time to time in discharging their functions under the said Land Drainage Act and which, but for this Act, would not have been expended or incurred;

Provided that at any time the Board may satisfy their future liability in that respect by paying to such drainage authority compensation of such amount as shall be agreed between them or determined by arbitration;

(c) indemnify the drainage authority against all actions, proceedings, claims, demands, damages, expenses or loss which may be brought or made on or against such drainage authority, or which such drainage authority may pay, sustain, or incur by reason or in consequence of the construction, maintenance or renewal of a specified work (or any alteration to the land drainage system under sub-paragraph (g) of paragraph (2) of this section) or of the failure or want of repair thereof or any subsidence caused by the construction thereof or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants whilst engaged upon the specified work:

Provided that—

(i) such drainage authority shall not settle any claim or demand by a third party without first giving reasonable notice to the Board and obtaining the agreement in writing of the Board; and

(ii) nothing in this sub-paragraph shall impose any liability on the Board with respect to any actions, proceedings, claims, demands, damages, expenses or loss which is attributable to the default, neglect or wrongful act of the drainage authority or of their servants or agents.

(4) The fact that any specified work has been executed by or in accordance with plans approved, or not objected to, by the drainage authority or to their satisfaction, or in

PART IV
—cont.

accordance with any directions or award of an arbitrator shall not relieve the Board from any liability under the provisions of this section.

- (5) Any difference arising between the Board and the drainage authority under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

PART V**GENERAL**

Modification
of Town and
Country
Planning
Act 1971.

30.—(1) In their application to development authorised by this Act, Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within ten years after the passing of this Act.

1971 c. 78.

(2) In this section the reference to Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 includes a reference to corresponding provisions of any general order superseding that order made under section 24 of the Town and Country Planning Act 1971 or any corresponding provision of an Act repealing that section.

Arbitration.
1965 c. 56.

31. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

32. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Sections 6
and 28.FURTHER WORKS AND POWERS REFERRED TO IN SECTION 6 (FURTHER
WORKS AND POWERS) OF THIS ACT

Area (1)	Description of work and power (2)	Requirements (3)
In the county of North Yorkshire— In the district of Selby— Parish of Temple Hirst	(a) Realign and lower road (C.329) between points "A" and "B".	The width of the road as realigned and lowered shall be 11 metres, comprising a carriage- way having a width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that under the bridge carrying Work No. 1 over the said road and between the wing walls of the said bridge the new road shall be 10 metres in width, comprising a carriageway having a width of 6 metres and a footway on each side of the carriageway having a width of 2 metres.
	(b) Stop up and discontinue footpath between points "C" and "G" and substitute therefor new footpath between points "C", "D", "E", "F" and "G" to pass under Work No. 1.	The width of the footpath where it passes under Work No. 1 shall be 2.4 metres and the clear height of the bridge carrying Work No. 1 over the footpath shall be 2.3 metres from the surface of the footpath.
Parish of Burn	(a) Stop up and discontinue bridleway (known as Whitings Lane) between points "A" and "B".	—
	(b) Stop up and discontinue road (A.19) between points "C" and "E" and	The width of the new road between points "C" and "D" shall be 14.3 metres, comprising

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Burn (continued)	points " F " and " D " and provide— (i) between points " C " and " D ", new road to be carried over Work No. 1 by a bridge, with private road access to new road at point " G ", and with footpath access thereto at point " M "; and (ii) at point " H ", link road between new road and portion of road (A.19) between points " E " and " F " to be retained. (c) Provide bridleway between points " HH " and " GG " with access to new road at point " GG ". (d) Stop up and discontinue footpath between points " L " and " M ". (e) Stop up and discontinue road (West Lane) (SB 138R) between points " J " and " K " and substitute therefor between the said points new road to be carried over Work No. 1 by a bridge.	a carriageway having a width of 7.3 metres and a verge on each side of the carriageway having a width of 3.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 11.3 metres in width, comprising a carriageway having a width of 7.3 metres and a footway on each side of the carriageway having a width of 2 metres. — — The width of the new road between points " J " and " K " shall be 9.5 metres, comprising a carriageway having a width of 5.5 metres and a verge on each side of the carriageway having a width of 2 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 8.5 metres in width, comprising a carriageway having a width of 5.5 metres and a footway on each side of the carriageway having a width of 1.5 metres.

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Gateforth	(a) Stop up and discontinue footpath between points "A" and "E" and substitute therefor between points "A", "B", "C", "D" and "E" new footpath to be carried over Work No. 1 by a footbridge.	The width of the footbridge carrying the footpath over Work No. 1 shall be 1.8 metres.
Partly in the parish of Gateforth and partly in the parish of Hambleton	(a) Stop up and discontinue road (Gateforth New Road) (C. 323) between points "F" and "H" and points "J" and "G" and provide— (i) between points "F" and "G", new road to be carried over Work No. 1 by a bridge with private road access to new road at point "M"; (ii) at point "N", link road between new road and portion of road (Gateforth New Road) between points "H" and "J" to be retained; and (iii) at point "O", link road between new road and existing private access to Gateforth Farm.	The width of the new road between points "F" and "G" shall be 11 metres, comprising a carriageway having a width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 9 metres in width, comprising a carriageway having a width of 6 metres and a footway on each side of the carriageway having a width of 1.5 metres.
Parish of Hambleton	(a) Raise road (Field Lane) (C. 322) between points "A" and "B" and carry said road over Work	The width of the road as raised between points "A" and "B" shall be 11 metres, comprising a carriageway having a

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Hambleton (continued)	No. 1 by a bridge.	width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 9 metres in width, comprising a carriageway having a width of 6 metres and a footway on each side of the carriageway having a width of 1.5 metres.
	(b) Stop up and discontinue road (A.63) between points "C" and "D" and substitute therefor between the said points new road to be carried over Work No. 1 by a bridge.	—
	(c) Stop up and discontinue road (Morretts Lane) (SB 351R) between points "E" and "F".	—
	(d) Stop up and discontinue road (Whinney Hagg Lane) (SB 352R) between points "K" and "J" and substitute therefor new road between points "K", "L", "M", "O" and "P" with junction at point "P" with new road to be provided between points "C" and "D".	The width of the new road between points "L", "M", "O" and "P" shall be 8 metres, comprising a carriageway having a width of 4 metres and a verge on each side of the carriageway having a width of 2 metres.
	(e) Stop up and discontinue road (Scalm Lane) (SB 353R) between points "Q" and "R".	—

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Hambleton (continued)	(f) Stop up and discontinue road (Philip Lane) (SB 349R) between points "S" and "T" and provide footpath between the said points crossing the railway on the level.	—
Partly in the parish of Sherburn in Elmet and partly in the parish of Cawood	(a) Stop up and discontinue road (C.314) between points "A" and "H", "J" and "C" and "K" and "B" and provide— (i) between points "A" and "B", new road to be carried over Work No. 1 by a bridge; (ii) at point "D", link road between new road and portion of road (C.314) between points "K" and "C" to be retained; and (iii) at point "E", link road between new road and portion of road (C.314) between points "H" and "J" to be retained. (b) Stop up and discontinue road (Bishopdike Road) (B.1222) between points "F" and "G" and substitute therefor between the said points new road to be carried over Work No. 1 by a bridge.	The width of the new road between points "A" and "B" shall be 11 metres, comprising a carriageway having a width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 9 metres in width, comprising a carriageway having a width of 6 metres and a footway on each side of the carriage- way having a width of of 1.5 metres. The width of the new road between points "F" and "G" shall be 14.3 metres, comprising a carriageway having a width of 7.3 metres and a verge on each side of the carriageway having a width of 3.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 11.3 metres in width, comprising a carriageway having a

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Sherburn in Elmet, etc. (continued)		width of 7.3 metres and a footway on each side of the carriageway having a width of 2 metres.
Parish of Ryther cum Ozendyke	(a) Stop up and discontinue footpath between points "A" and "B".	—
	(b) Stop up and discontinue footpath between points "C" and "D" and provide new footpath between points "D", "MM" and "H".	—
	(c) Stop up and discontinue road (Moor Lane) (SB 260R) between points "E" and "F" and— (i) substitute therefor between the said points new road to be carried over Work No. 1 by a bridge with footpath access to new road at point "M"; and (ii) provide at point "R" link road between new road and road (Moor Lane) to be stopped up and discontinued but to be retained in part as private access.	The width of the new road between points "E" and "F" shall be 9.5 metres, comprising a carriageway having a width of 5.5 metres and a verge on each side of the carriageway having a width of 2 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 8.5 metres in width, compris- ing a carriageway having a width of 5.5 metres and a footway on each side of the carriageway having a width of 1.5 metres.
	(d) Stop up and discontinue footpath between points "G" and "H" and provide new footpath between points "H", "J", "P" and "L" with access to new road at point "L".	—
	(e) Stop up and discontinue footpath between points "M" and "N".	—

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Ryther cum Ozendyke (continued)	(f) Stop up and discontinue footpath between points " O " and " P " and substitute therefor new footpath between points " O " and " Q " with access to new road at point " Q ".	—
	(g) Stop up and discontinue bridleway and footpath between points " S " and " T " and substitute for said footpath between points " S " " V ", " W ", " X " and " T " new footpath to be carried over Work No. 1 by a footbridge.	The width of the footbridge carrying the footpath over Work No. 1 shall be 1·8 metres.
	(h) Stop up and discontinue footpaths between points " Y " and " Z " and points " CC " and " DD " and provide new footpaths between points " Y ", " AA ", " BB " and " CC ", and points " DD ", " FF ", " EE " and " Z ".	—
	(j) Stop up and discontinue road (B.1223) between points " GG " and " JJ " and points " KK " and " HH " and provide— (i) between points " GG " and " HH ", new road to be carried over Work No. 1 by a bridge with footpath and private road access to new road at point	The width of the new road between points " GG " and " HH " shall be 11 metres, comprising a carriageway having a width of 6 metres and a verge on each side of the carriageway having a width of 2·5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 10 metres in width, comprising a carriage-way having a width of

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Ryther cum Ozendyke (continued)	" OO "; and (ii) at point " LL ", link road between new road and portion of road (B.1223) between points " JJ " and " KK " to be retained. (k) Stop up and discontinue footpath between points " NN " and " OO ".	6 metres and a footway on each side of the carriageway having a width of 2 metres. —
Parish of Bolton Percy	(a) Realign and raise road (Oak Avenue) (BT 245R) between points " A " and " B " and carry said road over Work No. 1 by a bridge. (b) Stop up and discontinue bridleway (Church Lane) between points " C " and " H " and substitute therefor between points " C ", " D ", " E ", " F ", " G " and " H " new bridleway to be carried over Work No. 1 by a bridle- bridge.	The width of the road as realigned and raised between points " A " and " B " shall be 9.5 metres, comprising a carriageway having a width of 5.5 metres and a verge on each side of the carriageway having a width of 2 metres, except that upon the bridge carrying the said road over Work No. 1 the said road shall be 8.5 metres in width, comprising a carriage- way having a width of 5.5 metres and a footway on each side of the carriageway having a width of 1.5 metres. The bridle-bridge carrying the bridleway over Work No. 1 shall be 2.5 metres in width.

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Appleton Roebuck	(a) Stop up and discontinue road (Old Road) (C.289) between points " A " and " B " and substitute therefor between said points new road to be carried over Work No. 1 by a bridge.	The width of the new road between points " A " and " B " shall be 11 metres, comprising a carriageway having a width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 9 metres in width, comprising a carriage- way having a width of 6 metres and a footway on each side of the carriageway having a width of 1.5 metres.
	(b) Stop up and discontinue footpath between points " C " and " D ".	—
	(c) Stop up and discontinue road (New Road) (BT 249R) between points " E ", " F " and " G ".	—
	(d) Provide bridleway between points " F " and " K " with access to new road at point " K ".	—
	(e) Stop up and discontinue road (Colton Lane) (C.290) between points " H " and " J " and substitute therefor between the said points new road to be carried over Work No. 1 by a bridge.	The width of the new road between points " H " and " J " shall be 11 metres, comprising a carriageway having a width of 6 metres and a verge on each side of the carriageway having a width of 2.5 metres, except that upon the bridge carrying the new road over Work No. 1 the new road shall be 9 metres in width, comprising a carriageway

SCH. 1
—cont.

Area (1)	Description of work and power (2)	Requirements (3)
Parish of Appleton Roebuck (continued)		having a width of 6 metres and a footway on each side of the carriageway having a width of 1·5 metres.
Parish of Colton	(a) Stop up and discontinue footpath between points " A " and " F " and substitute therefor between points " A ", " B ", " C ", " D ", " E " and " F " new footpath to be carried over the York and Leeds railway and Work No. 1 by a footbridge.	The width of the footbridge carrying the footpath over Work No. 1 shall be 1·8 metres.

Section 19.

SCHEDULE 2

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 19 (POWER TO
ACQUIRE LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)	Purpose for which the lands may be used (3)
In the county of North Yorkshire— In the district of Selby— Parish of Hensall	10 to 15	To carry out alterations and im- provements to the Doncaster and York railway.
Parish of South Milford	2, 3	To provide railway connection with the proposed Gascoigne Wood coal terminal.

SCHEDULE 3

Section 26.

BRIDGES REFERRED TO IN SECTION 26 (FOR PROTECTION OF POST OFFICE)
OF THIS ACT

Road or bridleway (1)	Number of pipes (2)
PART I	
Parish of Burn—	
A.19	3 on south side.
West Lane (SB 138R)	1 on north side.
Parish of Gateforth—	
Gateforth New Road (C.323) ...	2 on north side.
Parish of Hambleton—	
A.63	2 on north side.
Parish of Ryther cum Ozendyke—	
Moor Lane (SB 260R)	1 on north side.
B.1223	1 on south side.
Parish of Bolton Percy—	
Bridleway (Church Lane)	1 on north side.
Parish of Appleton Roebuck—	
Old Road (C.289)	1 on north side.
Colton Lane (C.290)	2 on north side.
PART II	
Parish of Sherburn in Elmet—	
Bishopdike Road (B.1222)... ..	2 on south side.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED

FOR BERNARD M. THIMONT

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£1.50 net

ISBN 0 10 511079 5



British Railways (Selby) Act 1979

CHAPTER x

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6. Further works and powers.
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8. As to vertical limits of deviation in respect of Work No. 7.
9. As to height of bridge.
10. Accommodation works for Work No. 4.
11. Transport consultative committees.
12. Stopping up roads, bridleways and footpaths without providing substitute.

Section

13. Stopping up roads, bridleways and footpaths in case of diversion or substitution.
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26. For protection of Post Office.
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Schedule 2—Lands referred to in subsection (2) of section 19 (Power to acquire lands) of this Act.

Schedule 3—Bridges referred to in section 26 (For protection of Post Office) of this Act.